

EXAM NO. _____

THE UNIVERSITY OF TEXAS AT AUSTIN
SCHOOL OF LAW

FALL 2024
DECEMBER 13, 2024

TAKE-HOME EXAMINATION IN

FEDERAL COURTS

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This exam has 3 questions and is 5 pages long (after the two pages of instructions).

INSTRUCTIONS

1. This exam is open book. You may refer to any printed or written materials. But your answer must be your own work. So you may not discuss the exam with any other person while you are taking the exam. Nor may you discuss the exam with anyone until after the end of the examination period. Relatedly, you **may not use** generative AI (such as Chat GPT) for any writing, research, or other task related to taking this exam.
2. The exam consists of three questions. The first question is worth 45% of the exam grade; the second question is worth 35% of the exam grade; and the final question is worth 20% of the exam grade. You will have 8 hours to complete this exam, though it is designed to take less time.
3. Keep in mind: **clarity, organization, and conciseness** will be considered in evaluating your answer. I recommend that you take some time to prepare an outline or otherwise organize your answer before you start writing or typing.
4. There is a word limit of **4500 words** for the entire exam, but the questions can be fully answered in fewer words than that. You may divide your words among the questions as you see fit. Percentage allocations are provided to guide you. You must adhere to the word limit. You may use Exam4 to track each answer's length. Once the exam has begun, click 'Tools' and select 'Show Document Statistics' to open a tracking panel. Begin each subsequent answer you wish to track by selecting 'Insert Answer Separation.'
5. Please do NOT identify yourself anywhere on your completed answers other than by your anonymous number. If you have computer glitches or other complications during the exam, please contact Sarah Kitten (kitten@law.utexas.edu), or the Student Affairs Office (512-232-1140).
6. If you perceive ambiguity in a question, please note the ambiguity and continue to answer the question to the best of your ability. Although some of the questions may be loosely modeled on real world events, the events they describe are fictitious and you should treat them as such.

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7. If you make any assumptions of law or fact, or if any part of your answer rests on the resolution of questions of law or fact that require further investigation, you should state these explicitly.
 8. **HONOR CODE:** Chapter 1 of the Honor Code provides in part: “A student at the University of Texas at Austin School of Law is expected to adhere to the highest standard of personal integrity. Each student is expected to compete honestly and fairly with his or her peers. All law students are harmed by unethical behavior by any student.... Under the honor system, the students must not tolerate unethical behavior by their fellow students. A student who knows of unethical behavior of another student is under an obligation to take the steps necessary to expose this behavior.” It is, for example, a violation of the Honor Code to use any materials prohibited by the instructor, to communicate with anyone regarding the contents of the exam while taking the exam, and to share these exam questions or to discuss this exam with a student who has not yet taken it.

Good luck!!

Question 1 (45% of exam grade)

A. Will Gates was a high school basketball phenomenon in Corinth, Illinois (a town near Chicago). But his life took a turn for the worse in 2021, when he was on trial for his alleged involvement in the June 2020 shooting of another player on the team: Art Agey.

The coach of the team (Norman Dale) had already gone on trial for shooting Gates. In September 2020, Coach Dale was found guilty and sentenced to seventy-five years in prison. Several months later, in January 2021, Gates was put on trial for serving as an accomplice to the shooting.

During Gates' trial, the key witness was the victim. Agey reiterated his testimony from the earlier trial that "Coach Dale shot me." But, Agey added at this trial, "Will Gates was there, too. He got the gun for Coach Dale." Gates had no alibi; he testified that he was home alone at the time of the shooting. Gates was found guilty as an accomplice and sentenced to twenty years in prison. He lost his direct appeals, and his conviction was final in May 2022.

Gates filed a petition for a writ of habeas corpus in state court in June 2022. He claimed that his trial counsel was ineffective, but he struggled to point to anything that his counsel had done wrong. The state court finally issued a decision in July 2024 and, citing *Strickland v. Washington*, denied the habeas petition.

One month after Gates' state habeas petition was denied, he watched an episode of the investigative journalism television show, *70 Minutes*. One segment of the show was "The Illinois Prosecutorial Scandal." Gates was shocked to see that Art Agey was among the people interviewed. Agey and others explained how they were "coerced" by Assistant District Attorneys (ADAs) in Corinth into becoming "witnesses" to various crimes. Agey recounted:

Back in June 2020, I told the cops that Coach Dale did the shooting. And they put him on trial. The prosecutor—ADA Fleener—was nice to me through that whole trial. But a few months later, she came back and told me that she wanted me to point the finger at my friend, Will Gates. I said, "No way." But then I got in the mail this official-looking thing that called itself a "Subpoena" and was signed by a judge. It said in all caps, "A FINE AND IMPRISONMENT MAY BE IMPOSED FOR FAILURE TO OBEY THIS NOTICE." It told me I had to meet up with the ADA at a particular time in November 2020 to talk about the shooting.

When I met up with the ADA, she told me that I had to say that Will got the gun for Coach Dale. I said "no" again, but she threatened to put me in jail as a material witness. I didn't want to hurt my friend, but I didn't know what else to do. I had to say he helped Coach Dale.

The *70 Minutes* episode revealed that Gates' case was not an isolated event. *70 Minutes* reported that, in the previous five years, witnesses in seven other criminal trials in Corinth were similarly pressured to testify against criminal defendants. The pressure came from three different assistant district attorneys, including the ADA in Gates' case: Myra Fleener. Moreover, the episode revealed that the subpoenas sent to the witnesses in all eight criminal cases were

fraudulent. No judge had signed off on—or was even aware of—any of the “subpoenas.” The *70 Minutes* episode also featured an email—sent by the head district attorney in Corinth, Illinois (DA Cletus Summers) and dated September 2020—saying, “Please see the attached/revised DA Subpoena to be used from this date forward. Please do not use any of the older subpoenas.” A sample subpoena—virtually identical to the one Agey received—was attached to the message.

Gates immediately went back to the state habeas court, asking it to reconsider its rejection of his state habeas petition. But the state court denied the motion as out of time, stating that under state law, “a motion for reconsideration must be filed within 20 days.”

It is September 2024. Gates has come to your law firm for help. He wants to know if there is “any way for me to get out of jail now.” Your supervisor asks you to write a memo, explaining how Gates might file a petition for a writ of habeas corpus in federal court. Be sure to evaluate the arguments on both sides, cite relevant cases and statutory provisions, and make a prediction about how a court will rule on each issue.

Your research reveals the following: In *Brady v. Maryland* (1963), the U.S. Supreme Court held that prosecutors must disclose to the defense evidence that may be “favorable to [the] accused” and “material” to the jury’s decision. The Seventh Circuit Court of Appeals (which oversees Illinois) held in the 1990s in a federal criminal case that “the government’s failure to disclose that some of its evidence was obtained through fraud or deception is clearly a *Brady* violation.” You also learn that, in order to exhaust his state court remedies, Gates had to raise a *Brady* claim in the state habeas court.

B. Assume the following additional facts: It is now December 2024. While Gates’ federal habeas petition is still pending, Agey comes to your office, wondering how he might “make those prosecutors pay for what they did.” Agey has been helping with Gates’ habeas case, and they are friends again, but Agey remains angry. As he puts it, “I was the victim, and that ADA made me feel like a criminal.”

Your supervisor tells you that she suspects that Agey’s substantive due process rights under the Fourteenth Amendment may have been violated, when he was pressured to testify against Gates. The Seventh Circuit Court of Appeals has held since the 1980s that a government official violates a person’s substantive due process rights when the official’s conduct is “so egregious, so outrageous, that it may fairly be said to shock the contemporary conscience.” You have found a case from the Sixth Circuit Court of Appeals (which oversees Tennessee, Kentucky, Ohio, and Michigan), holding in 2010 that “threats by the police, which force a person to lie or fabricate evidence, are so obviously egregious and outrageous as to shock the conscience. Such conduct plainly violates the person’s substantive due process rights.”

Your supervisor asks you to write a memo, explaining how Agey might bring suit in federal court under 42 U.S.C. § 1983 against (1) ADA Fleener in her personal capacity, seeking damages for the violation of Agey’s due process rights; and (2) the city of Corinth, Illinois for damages and injunctive relief for the due process violation. Be sure to discuss any jurisdictional and/or procedural obstacles that Agey is likely to face in bringing suit against each defendant. Also be sure to evaluate the arguments on both sides, cite relevant cases, and make a prediction about how a court will rule on each issue.

Question 2 (35% of exam grade)

It is the year 2032. In recent years, members of Congress have become concerned about what they view as “excessive” displays of religious material in public elementary and secondary schools. Many lawmakers argue that these displays violate the Establishment Clause of the U.S. Constitution, which applies to state governments through the Fourteenth Amendment and bars them from enacting any “law respecting an establishment of religion.” During six months of legislative hearings, members of Congress learned that ten states had enacted legislation requiring displays of religious material in public schools. In fifteen other states, state legislators had proposed similar measures, but they had not been enacted. But in those fifteen states, more than thirty localities had adopted ordinances requiring such displays in public schools.

In July 2031, Congress enacted the Separation in Schools Now Act (“Separation Act”), which states in pertinent part:

No person, including any State, state agency, or state instrumentality, shall require any public elementary or secondary school to display religious imagery. Any person aggrieved may bring suit for damages or declaratory or injunctive relief against any person that violates this Act.

Dan Vader is a state legislator in Jedha, a State in the United States. Representative Vader was recently elected (in 2030) on a platform of “restoring decency and morality for our youth.” Representative Vader is well-known for his devout faith in a prominent religion known as “The Force.” During his campaign, Representative Vader insisted that “we must recognize the Force as part of our national heritage and the values that our nation was built on.” (The Force has been a prominent religion in the United States for more than three centuries, since adherents arrived in the 1700s.) Followers of the religion learn to recite the “Force Code,” which states in full: “The Force is the one religion. There is no other religion. There is no emotion; there is peace. There is no ignorance; there is knowledge. There is no death; there is the Force.”

After taking office, Representative Vader sponsored—and the Jedha state legislature in August 2031 enacted—the Force Act. The state law provides:

No later than January 1, 2032, each public school shall display the Force Code in each classroom. The text of the Force Code shall be printed in a large, easily readable font: specifically, the text should be at least 16-point Times New Roman font, and it should appear on an 11-inch by 14-inch display. The Force Code shall be displayed next to an 11-inch by 14-inch display of the entire text of the U.S. Constitution.

Jen Erso is a third-grade student in a public elementary school in Jedha. Erso’s school began displaying the Force Code in November 2031. The Erso family filed suit soon thereafter in federal court against Jedha State Attorney General Leia Organa in her official capacity, seeking both money damages and a declaration that the Force Act violates the Separation Act.

In response to the lawsuit, Attorney General Organa announced: “The Force Act plainly violates the federal Separation Act. My office will not defend it in court.” Representative Vader condemned Attorney General Organa as a “traitor.” One chamber of the Jedha state

legislature—the Jedha Senate—intervened to defend the state law. Representative Vader and 48 other members of the 100-member Jedha House of Representatives also intervened to defend the state law. (The Jedha state legislature consists of two chambers: the Senate and House of Representatives. Jedha state law provides that “the Attorney General is empowered to represent the State in court. Any legislator may, acting alone or in combination with other legislators, represent the State in court, when the Attorney General declines to do so.”)

In March 2032, the federal district court ruled in favor of the Erso family. Attorney General Organa praised the decision and made clear that her office would not appeal the ruling. Soon thereafter, as the state legislative defendants were preparing to appeal, Congress enacted the following statute (the Clarifying Jurisdiction Act):

Neither the United States Supreme Court nor any federal court of appeals shall have jurisdiction over any claim or defense seeking to invalidate under the U.S. Constitution all or part of the Separation in Schools Now Act.

Also in March 2032, just two days after Congress passed the Clarifying Jurisdiction Act, the Jedha state legislature repealed the Force Act and enacted the following (known as the School Freedom Act): “Each public school in this State shall have the discretion, but is not required, to display the Force Code in each classroom.”

The Erso family has come to your law firm, stating that the state legislative defendants plan to appeal the district court decision to the federal court of appeals. The Erso family would like to know what arguments the legislators are likely to raise on appeal, and how the family may preserve their lower court victory. Please write the memo. Be sure to evaluate the arguments on both sides, cite relevant cases, and make a prediction about how the court will rule on each issue. (Please note: Your supervisor tells you to assume that the Erso family had standing to bring the lawsuit in federal district court, and that the Separation Act gave the family a cause of action.)

Your research reveals the following: In *Stone v. Graham* (1980), the Supreme Court struck down, as a violation of the Establishment Clause, a state statute requiring that the Ten Commandments be posted on the wall of each public classroom in the State. The Court in *Stone* stated that the Ten Commandments “are undeniably a sacred text in the Jewish and Christian faiths,” which do “not confine themselves to arguably secular matters,” such as prohibiting murder or stealing, but also concern “the religious duties of believers.” In *McCreary County v. American Civil Liberties Union* (2005), the Court examined Ten Commandments displays at two courthouses. The Court stated that “*Stone* did not purport to decide the constitutionality of every possible way the Commandments might be set out by the government, and under the Establishment Clause detail is key.” But the Court still held invalid the courthouse displays, in part because (like the display in *Stone*) the Ten Commandments were not combined with any secular image and thus were “not part of an arguably secular display.” You also learn that the Supreme Court from 1971 to 2022 applied a heightened standard of scrutiny to alleged government violations of the Establishment Clause. But in 2022 the Court switched to a historical test, examining whether a government invocation of religion has a historical basis. This historical test is more permissive (that is, it allows more displays of religious material by the government than the prior test), but the Court has not stated whether this new test is more akin to a heightened or a rational basis standard of scrutiny.

Question 3 (20% of exam grade)

Choose **one** of the following assertions, state whether you agree or disagree with the statement (in whole or in part), and then explain why you agree or disagree. Be sure to use examples from cases, statutory provisions, and/or constitutional provisions that we have covered in this course.

- (1) When federal courts have both constitutional and statutory jurisdiction, they should always exercise that jurisdiction. They should never abstain from a case or decline to hear a case because the plaintiff is asserting someone else's constitutional rights.
- (2) Federal courts should never create any federal common law causes of action, such as customary international law or *Bivens*. The creation of a cause of action should be left to Congress.

END OF EXAM

Thank you for a fantastic semester!